



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 13, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201809797 regarding Police Officer Edward O'Brien, Tax No. [REDACTED] and Police Officer Marc Fontana, Tax No. [REDACTED] (DADS No. 2019-20756)

Dear Mr. Darche:

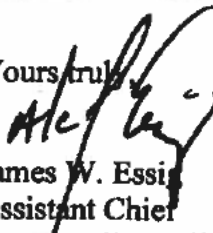
The Police Commissioner has reviewed the facts and circumstances in this matter, including video evidence. The Police Commissioner agrees with the CCRB regarding the findings and penalty recommendation concerning Police Officer O'Brien. However, while the Police Commissioner agrees with the findings regarding Police Officer Fontana, he disagrees with the penalty.

In this matter, Police Officer Fontana failed to provide his shield number when requested. In reviewing the facts of this case, along with Police Officer Fontana's discipline history, the Police Commissioner determined that the actions of Police Officer Fontana can be adequately addressed with a Schedule "A" Command Discipline.

Therefore, the Police Commissioner directs that Police Officer O'Brien be issued a Schedule "B" Command Discipline and Police Officer Fontana be issued a Schedule "A" Command Discipline for their respective allegations as substantiated by CCRB.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



James W. Essi
Assistant Chief
Commanding Officer
Police Commissioner's Office

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